

III. Discussion

Plaintiff seeks further responses to the following:

Demand No. 1: To inspect any ELECTRONIC MEDIA ANGELS GUN CLUB utilized to input, organize, maintain, and store ANGELS GUN CLUB financial data from October 2021 to present.

Demand No. 2: To inspect any ELECTRONIC MEDIA ANGELS GUN CLUB utilizes to input, organize, maintain, and store QuickBooks software or any other methods of accounting from October 2021 to present.

Demand No. 3: To inspect any ELECTRONIC MEDIA ANGELS GUN CLUB utilized to back up any ANGELS GUN CLUB financial data and meeting minutes from October 2021 to present.

Demand No. 4: To inspect any ELECTRONIC MEDIA ANGELS GUN CLUB utilizes to draft, input, organize, maintain, and store ANGELS GUN CLUB board of directions meeting minutes from October 2021 to present.

Plaintiff argues that the demands for inspection Nos. 1-3 are relevant and admissible—or likely to lead to admissible evidence—because they go to the heart of the dispute over AGC’s ability to properly maintain and produce the Reports specified in the Agreement. Plaintiff asserts that in the meet and confer efforts, it clarified the scope and purpose of the discovery was to analyze AGC’s financial reporting capabilities and that this information was necessary for the expert to find meta data on the specific computers and to “ensure all the data is available to run this, and that meta data usually hides in other parts of the computers.” (Whitney Decl. ¶ 6, Ex. D.)

Plaintiff argues that demand no. 4 is relevant and likely to lead to admissible evidence because they are seeking to determine whether any meeting minutes have been deleted, altered, or destroyed. Plaintiff argues that there was a heated debate at an AGC meeting regarding the matters of this lawsuit which is mysteriously absent from the minutes. Plaintiff also asserts that the meeting minutes may have contained information related to the Reports and/or tax status of AGC.

To each of these demands, AGC responded in a substantially identical manner, stating:

This inspection request is not reasonably calculated to lead to the discovery of relevant evidence. This Request is not reasonably limited and is overbroad in its scope. Counsel undersigned attempted to meet and confer with opposing counsel regarding the need for such discovery, the purported relevance of it to any of Plaintiff’s claims in this matter, and received only a very vague description of the inspection intended.

Given the inability to articulate the necessity of this discovery when asked, Responding Party will not accommodate this Request. Responding Party remains open to meeting and conferring with Propounding Party.

Boilerplate objections, such as those made by AGC, fail to satisfy the level of specificity required by the discovery statutes and are sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) Indeed it is a misuse of the discovery process to provide, without substantial justification, an unmeritorious objection to discovery or to make an evasive response to discovery. (Code Civ. Proc. § 2023.010(e), (f).) AGC's repeated the identical boilerplate objections to each discovery demand and failed to articulate the basis for any objection. Nor is there any legal basis for AGC to demand that Plaintiff "articulate the necessity" for discovery before AGC will agree to produce such discovery.

Once a motion to compel has been filed, the burden is on the responding party to justify the objections made. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.) In its opposition, AGC focuses its argument primarily on its belief that the requests are overbroad and irrelevant. AGC also argues that it is produced sufficient responses elsewhere and that Plaintiff is essentially seeking unfettered access to AGC's electronic files simply to build his case.

A primary contention in Plaintiff's claims against AGC is that it has not only failed to produce the required Reports, but that it also knew it was incapable of producing those Reports when it entered into the Agreement with Plaintiff. Plaintiff has produced evidence in his motion tending to show that there is a dispute, even among AGC's members, as to what the software/computing programs AGC uses can in fact produce. Plaintiff reasonably argues that forensic review of the computers and electronic storage systems themselves may reasonably produce evidence tending to prove (or disprove) Plaintiff's theories regarding AGC's unwillingness or inability to produce those Reports.

However, the Court is also cognizant of the privacy interests potentially implicated by allowing access to AGC (and potential private individual) computers. Accordingly, the Court orders as follows:

1. AGC is ordered provide code-compliant responses to the demands for inspection, without mere boilerplate objections.
2. Plaintiff is to produce a list of search terms to be used by the forensic examiner and to provide the same to AGC and the Court within fifteen (15) days. Plaintiff is also to draft and circulate a protective order for approval by AGC regarding the limitation on use of data obtained and steps which will be taken to ensure that private personal data is not accessed.
3. The parties shall present a protective order to the Court within thirty (30) days of this Order.